

HOUSE BILL No. 1265

DIGEST OF INTRODUCED BILL

Citations Affected: IC 14-8-2; IC 14-19-3-6.5.

Synopsis: Natural resource entrance fees. Allows counties to adopt an ordinance to impose a surcharge of not more than \$2 in addition to the fees charged by the department of natural resources (department) for entry into state parks and state recreation areas. Requires the department to collect the surcharge and to report and pay the surcharge to each county treasurer. Provides that the revenue collected is to be used for purposes related to first responders and infrastructure improvements. Provides that the surcharge may not be imposed on a person who holds an annual pass.

Effective: July 1, 2026.

Yocum

January 6, 2026, read first time and referred to Committee on Natural Resources.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1265

A BILL FOR AN ACT to amend the Indiana Code concerning natural and cultural resources.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 14-8-2-87.8 IS ADDED TO THE INDIANA CODE
2 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
3 1, 2026]: **Sec. 87.8. "Fees", for purposes of IC 14-19-3-6.5, means**
4 **entrance or admission fees that are paid in a county upon or after**
5 **entering a state park or state recreation area located in the county.**

6 SECTION 2. IC 14-8-2-91.6 IS ADDED TO THE INDIANA CODE
7 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
8 1, 2026]: **Sec. 91.6. "First responder", for purposes of**
9 **IC 14-19-3-6.5, refers to:**

- 10 (1) a law enforcement officer (as defined in IC 5-2-1-2(1));
11 (2) a firefighter, including a volunteer firefighter; or
12 (3) an emergency medical technician, emergency medical
13 responder, or paramedic.

14 SECTION 3. IC 14-19-3-6.5 IS ADDED TO THE INDIANA CODE
15 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
16 1, 2026]: **Sec. 6.5. (a) A county fiscal body may adopt an ordinance**
17 **to impose a surcharge on the fees paid in the county for entry into**



1 a state park or state recreation area located in the county. A
 2 county fiscal body that adopts an ordinance under this section shall
 3 notify the director of the department. The department shall report
 4 the surcharge collected under the ordinance on forms approved by
 5 the county treasurer.

6 (b) The surcharge is equal to an amount of not more than two
 7 dollars (\$2) in addition to any fees charged by the department for
 8 entry into the state park or state recreation area. However, the
 9 surcharge may not be imposed on:

- 10 (1) a veteran (as defined in IC 10-17-13.5-3);
- 11 (2) an individual serving on active duty in any branch of the
- 12 armed forces of the United States;
- 13 (3) an individual who is at least sixty-five (65) years of age; or
- 14 (4) a person who holds an annual pass issued under section 5
- 15 of this chapter and members of the person's immediate
- 16 family.

17 (c) The department shall:

- 18 (1) begin collecting the surcharge not later than sixty (60)
- 19 days after receiving notice under subsection (a) of the
- 20 adoption of an ordinance; and
- 21 (2) pay the surcharge collected during a month to the county
- 22 treasurer not later than the end of the following month.

23 (d) The surcharge collected by the department and paid to the
 24 county treasurer must, as applicable, be used for one (1) or both of
 25 the following in accordance with the ordinance adopted under
 26 subsection (a):

- 27 (1) For purposes related to first responders in the county,
- 28 including:
- 29 (A) compensation;
- 30 (B) purchases of equipment; and
- 31 (C) updating of equipment.
- 32 (2) Infrastructure improvements, including water quality
- 33 improvements.

34 (e) If:

- 35 (1) the state park or state recreation area is located in more
- 36 than one (1) county; and
- 37 (2) each county in which the state park or state recreation
- 38 area is located has passed an ordinance under subsection (a);
- 39 the department shall prorate the surcharge and pay a prorated
- 40 share to the county treasurer for each county in which the state
- 41 park or state recreation area is located.

